AUSTRALIAN E-BIKE REGULATIONS 2026

National Compliance & Parental Liability Guide — All States & Territories

NATIONAL STANDARD: 250W MAXIMUM · 25 KM/H MOTOR CUT-OFF · EN 15194 CERTIFICATION

1. UNIVERSAL RULES (ALL STATES)

- **250W Maximum:** Motor power must not exceed 250W on any public road or path.
- **25 km/h Cut-off:** Motor assistance must stop at 25 km/h in all jurisdictions.
- **No Throttle Cruising:** Throttle-only riding above 6 km/h is illegal nationwide.
- **EN 15194 Standard:** Mandatory on all new e-bikes sold in NSW from Feb 2026; a national import standard applies from Dec 2025. Road-use compliance deadlines vary by state — see table below.
- **Over 250W = Motorcycle:** Requires registration, insurance and a licence. Riding without these is a criminal offence.
- **Helmet Required:** An approved bicycle helmet is mandatory in all states.

2. STATE-BY-STATE KEY DIFFERENCES

State	Footpaths	Age	Key Note
NSW	Adults: 10 km/h	—	Seizure & crush powers in force from 21 Aug 2026. 500W grace period until 1 Mar 2029.
VIC	Under 13 only	—	Strictest footpath rule. Drone & blitz enforcement (52% non-compliant, CBD).
QLD	12 km/h cap	12+*	Seizure powers (1 Jul 2026); tiered ages from 31 Aug. AMA QLD called the law "watered down."
WA	Shared paths	16+	Ride Safe inquiry (Dec 2025): 32/33 recommendations backed; national push underway.
SA	All ages	—	E-scooters/PMDs legalised Jul 2025. Rules under review since Jun 2026.
TAS	All ages	—	Mirrors national standard.
ACT	All ages	—	Extensive shared path network in Canberra.
NT	All ages	—	Mirrors national standard.

** QLD: under-12s cannot ride in public; ages 12–15 must be directly supervised; 16+ needs a learner's licence.*

MEDICAL ALERT (Jun 2026): AMA Queensland called weakened e-mobility laws a *"shocking disregard for safety."* Emergency departments nationwide report rising child injuries from non-compliant e-bikes.

3. PARENTS: IS YOUR HOME AT RISK?

If an underage rider causes an accident on an illegal e-bike:

1. **NO INSURANCE:** Home policies exclude "unregistered motor vehicles." Illegal e-bikes fall under this category.
2. **PERSONAL LIABILITY:** Parents can be sued for millions in medical costs and damages.
3. **ASSET LIQUIDATION:** Your house, savings and assets can be seized to pay legal debts.

TYPICAL PENALTIES

Unregistered Vehicle: $500 (NT) to $3,189 (QLD)
Uninsured Vehicle: $500 (NT) to $5,500+ (NSW)
Unlicensed Rider: Court attendance
No Helmet: $25 (NT) to $518 (QLD)
Drink Riding (QLD): Up to $6,908
Footpath Speeding (NSW): Up to $2,200 — VIC bans adults outright
Destruction Order (NSW/QLD): Final — no return

Amounts vary by state. Check your state page for exact figures.

NSW SPOTLIGHT

Operation E-Voltage (Sep 2026): drone-led Northern Beaches operation — 36 non-compliant e-bikes seized for destruction, 16 penalty notices.

Roadside **Dyno Units** verify the 25 km/h cut-off on the spot (NSW only).

Broadcaster **Margaret Throsby**, 84, injured by an e-bike (Sep 2026) — renewed calls for stricter under-age e-bike laws.

QUICK COMPLIANCE CHECK

☐ Motor rated **250W or less**?
☐ Motor assist cuts out at **25 km/h**?
☐ **No throttle** above 6 km/h?
☐ **EN 15194** certificate or mark?
☐ Rider meets your state's **minimum age**?
☐ Rider wearing an **approved helmet**?

All yes = road legal in all states.

NATIONAL SAFETY SNAPSHOT

15+ deaths (2025): Reported nationally in e-mobility incidents (NRMA)
52% non-compliant: Melbourne CBD blitz, Operation Consider
ACCC consultation: National e-bike safety standard, open to 30 Nov 2026
12 deaths (2025): Queensland alone, per Amy's Foundation

FULL STATE-BY-STATE GUIDE

e-bikelaws.au

OFFICIAL STATUTORY REFERENCE

Road Rules 2014 (each state) | Road Transport Act 2013 (NSW) | Road Vehicle Standards Act 2018 (Cth)

For educational purposes only. Always refer to your state's current legislation. Information current as at November 2026.